

## **August 28, 2026, Civil Law & Motion Tentative Rulings**

### **1. CL0002989          Wells Fargo Bank, N.A. vs. Kevin J. Beard**

Plaintiff Wells Fargo Bank, N.A.'s unopposed motion to deem requests for admissions admitted is granted unless Defendant Beard serves, before the hearing, a proposed response to the requests for admission in substantial compliance with Code of Civil Procedure Section 2033.220.

#### **Request to Deem Matters Admitted**

A party may move for an order deeming its Requests for Admission ("RFAs") admitted if the party to whom they are directed has failed to serve a timely response. Code Civ. Proc. § 2033.280(b). "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." Code Civ. Proc. § 2033.280(c). Responses are due within 30 days after service of the discovery. Code Civ. Proc. §2033.250(a). Response time is extended by manner of service. Code Civ. Proc. § 2016.050. Service by mail extends the deadline by 5 calendar days. Code Civ. Proc. § 1013(a).

At bar, Plaintiff served its RFAs on November 19, 2025 by mail, making December 24, 2025 the deadline for Defendant to serve a timely response. Agne Decl., ¶¶ 1-2. Plaintiff has not received any response from Defendant. Agne Decl., ¶ 2. Therefore, the matters specified in Plaintiff's RFAs are deemed admitted, unless defendant serves, before the hearing, a proposed response to the requests for admission in substantial compliance with Code of Civil Procedure Section 2033.220.

#### **Sanctions**

Plaintiff's notice states, "Plaintiff is waiving all sanctions that may be awarded by the Court." Notice of Motion, 1:28. Ordinarily "[i]t is mandatory that the court impose a monetary sanction ... on a party ... whose failure to serve a timely response to the [RFAs] necessitated this motion." Code Civ. Proc. § 2033.280(c). The Court accepts Plaintiff's knowing and voluntary relinquishment of its right to sanctions.

### **2. CU0001323          Ryan Shirley vs. Dynasty Valley, LLC**

Plaintiff's motion to approve PAGA settlement is continued on the Court's motion to December 18, 2026, in Department 6 at 10:00 a.m. to allow for adjudication of Defendant's motion to file certain confidential and trade secret information under seal. Further, Plaintiff is ordered to file the supplemental declarations discussed in the supplemental brief from Settlement Administrator ILYM Group, Inc. and Plaintiff Ryan Shirley at least ten (10) days prior to the continued hearing date.

### **3. CU0001813                    USA Bath California Remodeling, Inc. vs. David Sweat**

One of the parties apparently reserved this date for the filing of a motion; none was filed. This matter is removed from calendar.

### **4. CU0002305                    Jason Christ v. Jordan Hannah**

Plaintiff/Cross-Defendant Jason Christ's motion to strike portions of defendant's answer and cross-complaint is granted in part.

#### Meet and Confer

Defendant argues that Plaintiff failed to meet and confer prior to filing the motion to strike. Defendant appears correct. "Before filing a motion to strike pursuant to [Code of Civil Procedure sections 435 to 437b], the moving party shall meet and confer ...." Code Civ. Proc., § 435.5(a). There is no evidence that Plaintiff did do here. That said, "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike." Code Civ. Proc., § 435.5(a)(4). "If, upon review of a declaration under section [435.5(a)(3)] a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort." *Dumas v. Los Angeles County Board of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3. Here, the Court does not believe further conferences are necessary and turns to the merits. Plaintiff shall comply with all required meet and confer requirements hereafter under the Rules of Civil Procedure.

#### Legal Standard

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof ...." Code Civ. Proc. § 435(b)(1). "The court may, upon a motion made pursuant to Section 435, ..., and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." Code Civ. Proc. § 436.

#### Answer

##### Frivolous Claim

Plaintiff moves to strike Defendant's "frivolous claim" affirmative defense arguing it is not an affirmative defense and that it is a legal conclusion. Point one of this argument has merit.

"An affirmative defense is 'new matter constituting a defense' ... and is defined as '[a] defendant's assertion of facts and arguments that, if true, will defeat the plaintiff's or prosecution's claim, even if all the allegations in the complaint are true.' " *Morris Cerullo World Evangelism v. Newport Harbor Offices & Marina, LLC* (2021) 67 Cal.App.5th 1149, 1158,